

**SHIP TO**

EMD Millipore Corporation  
75 Sylvan St.  
Building A, Suite 102  
Danvers, MA 01923  
United States

**BILL TO**

EMD Millipore Corporation  
Please send invoices to:  
naap.emdmillipore@emdshareservices.com  
ATTENTION: All e-invoices and any respective  
backup must be in one (single file) PDF or TIF attachment document.

**PURCHASE ORDER**

|                   |                     |                |
|-------------------|---------------------|----------------|
| PO NUM<br>1617879 | REV<br>0            | PAGE<br>1 OF 1 |
| DATE<br>22-APR-26 | BUYER<br>D D'Amelio |                |
| REV DATE          | REV BUYER           |                |

IMPORTANT: See bottom of form for other invoicing information

**VENDOR**

DDP Specialty Electronic Materials US 9, L  
974 Centre Road, CRP 730/4th Flr.  
Wilmington, DE 19805  
United States

**VERY IMPORTANT NOTE : SEE PDF ATTACHMENT**

|                          |                     |                           |                         |                                                           |
|--------------------------|---------------------|---------------------------|-------------------------|-----------------------------------------------------------|
| FAX<br>800-613-1355      | VENDOR NO<br>403924 | CONFIRM TO<br>SHARDA NASH | Phone<br>(800) 362-6373 | REQUESTOR/DELIVER TO<br>daniel.damelio@milliporesigma.com |
| PAYMENT TERMS<br>60 DAYS | FREIGHT TERMS       | FOB                       | SHIP VIA                |                                                           |

| LINE | PART NUMBER/REV/DESCRIPTION                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | DELIVERY DATE | QTY      | UOM | UNIT PRICE | EXTENSION | TAX |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|----------|-----|------------|-----------|-----|
| 1    | 7488040801PU-19<br>_17<br>Your #: 3257177<br>Tubing, Silicone Pharma 80, .500 x .875<br>Please review and confirm. Direct any questions or concerns to Dan D'Amelio at<br>daniel.damelio@emdmillipore.com Tel: Office: 978 - 810 - 0480.<br>-<br>Supplier will disclose to Millipore in writing: any changes that could affect the form, fit or function of the product, including the use of any materials of animal origin that are used as raw materials, or that come in direct contact with the Product. This includes, but is not limited to, raw materials, additives, excipients, lubricants, and packaging material.<br>- | 25-JUN-26     | 2,000.00 | FT  | 5.37       | 10,740.00 | N   |

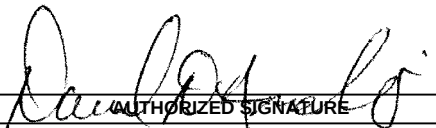
PLEASE SEND YOUR INVOICE TO naap.emdmillipore@emdshareservices.com  
ATTENTION: Must have Only ONE attached Invoice in a PDF or TIFF format per email

Question regarding payment can be sent to NAAPinquiries.emdmillipore@emdshareservices.com  
or by phone at (800) 637-7872  
If the ability to email is not possible, please mail to : 400 SUMMIT DR BURLINGTON MA 01803 UNITED STATES

Internet: <http://www.millipore.com>

The life science business of Merck KGaA, Darmstadt, Germany operates as MilliporeSigma in the U.S. and Canada

**TOTAL 10,740.00 (USD)**

  
AUTHORIZED SIGNATURE

## TERMS AND CONDITIONS OF PURCHASE FOR MILLIPORESIGMA ENTITIES

1. **ACCEPTANCE; ENTIRE AGREEMENT.** These terms and conditions of purchase are between the Seller and EMD Millipore Corporation, Sigma-Aldrich Corporation, or their United States-based affiliate who is listed as the purchasing entity identified on the face of the purchase order (D/B/A MilliporeSigma), which is referred to herein as "Buyer." Buyer shall contract hereunder for the benefit of itself and its affiliates. Commencement of performance or acceptance in writing of this purchase order shall constitute acceptance hereof by the Seller. Acceptance of this purchase order shall be unqualified, unconditional, and subject to and expressly limited to the terms and conditions hereof. Buyer shall not be bound by any provisions additional to or at variance with the terms hereof that may appear in Seller's quotation, acknowledgement, confirmation, invoice or in any other communication from Seller to Buyer unless such provision is expressly agreed to in a writing signed by an authorized agent of Buyer. Buyer's acceptance of or agreement for goods shipped shall constitute agreement of such a transaction subject to the provisions hereof only, and shall not constitute acceptance of any counter proposal submitted by Seller not otherwise accepted in writing signed by an authorized agent of Buyer. Upon acceptance, this purchase order: (i) shall constitute the entire agreement between Buyer and Seller, (ii) shall supersede all prior negotiations, discussions and dealings between Buyer and Seller, and (iii) shall be subject to these terms and conditions of purchase, **provided, however**, in the event that the parties have entered into an active and binding master agreement, the purchase order shall be governed by the terms and conditions of such master agreement, and where they are not inconsistent with such master agreement, these terms and conditions of purchase.

2. **INVOICES AND PRICES.** Each invoice submitted by Seller must reference the applicable purchase order number and line item detail with pricing, applicable taxes, and shipping and handling charges, if applicable. Buyer reserves the right to return all incorrect invoices. Buyer shall always be offered the lowest prevailing price offered by Seller to any other buyer. All prices outlined on the purchase order are firm unless otherwise agreed in writing, in which event Seller shall advise Buyer in writing thirty (30) days in advance of any price change, together with Seller's stated reason(s) for said price change. The price includes all applicable taxes and charges imposed by any governmental authority. Invoices shall be paid net sixty (60) days, or pursuant to the payment terms as indicated on the face of the purchase order, whichever is later. All payment terms referenced hereunder shall be from the date of receipt by Buyer of a properly submitted and accepted invoice. Sales and use taxes not subject to exemption shall be separately stated in Seller's invoice.

3. **EXTRA CHARGES.** No charges of any kind, including, without limitation, charges for boxing, packaging, loading, bracing, cartage, fuel, duties, customs, taxes or extra insurance, will be allowed unless specifically agreed to by an authorized agent of Buyer in writing, or as are expressly set forth on the face of the purchase order, or as required by the law and appurtenant regulations governing this purchase order.

4. **SET-OFF.** Buyer shall be entitled at all times to set off any amount owing at any time from Seller or any of its affiliates to Buyer or any of its affiliates.

5. **TRANSPORTATION – RISK OF LOSS – TITLE TO GOODS.** Except as otherwise stated on the face of the purchase order, all goods shall be shipped FCA (Seller's Shipping Point) INCOTERMS 2020. Goods shall be suitably packed, marked, labeled and shipped in accordance with all applicable laws and regulations, the shipping instructions of Buyer, or otherwise in accordance with the requirements of common carriers to incur the lowest transportation cost. Seller shall utilize Buyer's courier account number to ship goods to Buyer and shall not charge shipping or handling on its invoice. No insurance charges will be allowed unless authorized in writing by Buyer. Title to the goods shall pass to Buyer upon receipt by its courier of the goods at Seller's shipping point. There shall be no restrictions on the use of goods once title has passed to Buyer.

6. **DELIVERY DATE AND SHIPMENT.** Goods shipped to Buyer in excess of the amounts identified on the purchase order or called for in a delivery schedule may, at Buyer's option, be returned to Seller at Seller's expense. Goods shipped to Buyer in advance of the delivery date may be returned to Seller at Seller's expense, or Buyer may retain possession of such goods and withhold payment until the date such payment is due as set forth in the terms and conditions of Article 2 hereof. If no delivery date is specified in a purchase order issued by Buyer, the order shall be filled promptly. If no method of delivery is specified, Seller must utilize a carrier identified on the Buyer Shipping Guidelines that accompany every purchase order. Seller shall package all items in suitable containers to permit safe transportation and handling in compliance with current U.S. Department of Transportation regulations. Each delivered container must be labeled and marked to identify contents without opening, and all boxes and packages must contain packing sheets listing contents. Buyer's purchase order number must appear on all shipping containers, packing sheets, delivery tickets and bills of lading. Material Safety Data Sheets may be supplied with the shipment of hazardous materials, and these sheets shall otherwise be available upon Buyer's request.

7. **DELAYS IN DELIVERY.** Time is of the essence with respect to Seller's performance hereunder. If Seller for any reason other than those specified in Article 27 does not comply with Buyer's delivery schedule, then in addition to remedies provided by law, Buyer may, at its option, (i) approve a revised delivery schedule; (ii) terminate this purchase order without compensation or penalty and hold Seller accountable for all losses and damages arising therefrom, including any additional charges for procuring the goods or services elsewhere; or (iii) apply a five percent (5%) credit of the total shipment cost for every week the goods do not arrive at Buyer's delivery destination (as specified in the purchase order).

8. **SPECIFICATIONS.** All goods covered by this purchase order will conform to the specifications, patterns, drawings, samples or other description(s) (the "specifications") either furnished or adopted by Buyer or made known to Buyer through Seller's literature or documentation, and will be of good quality, material and workmanship, and free from defects. Goods furnished to Buyer's specifications, or fabricated with its tools shall not be furnished or quoted to any other person or entity. Services shall be performed according to the specifications or stipulations as outlined by Buyer in a purchase order or pursuant to a separate agreement and/or Statement of Work executed by both parties. At all times, Seller shall be considered an independent contractor and not an employee of Buyer in the performance of the services contracted hereunder.

9. **WARRANTY.** Seller warrants, with respect to any goods, that: (1) it has good title to the goods, or will have at the time title is to pass, (2) the goods conform to the stated specifications, (3) the goods are free from liens and encumbrances, (4) the goods are fit for the purpose for which bought, (5) the goods are merchantable, (6) the goods have no latent defects, (7) the goods are of good material and workmanship, (8) the goods comply with and have been manufactured in compliance with all applicable laws, orders and regulations, and (9) that no goods are adulterated or misbranded within the meaning of the Federal Food, Drug and Cosmetic Act ("Act") or within the meaning of any other applicable law in which the definition of adulteration or misbranding are substantially the same as those contained in the Act, as such laws are constituted and effective at the time of shipment or delivery, or as an article which may not, under the provisions of Section 404 or 505 of the Act be introduced into interstate commerce. Seller warrants that with respect to any services it provides to Buyer, it shall perform the services in accordance with (i) standards of care, skill and diligence consistent with recognized and sound industry practices, procedures and techniques; (ii) Buyer's communicated requirements and timelines; (iii) all applicable laws, orders and regulations; (iv) the specifications, documents and procedures applicable to the services; and (v) the degree of knowledge, skill and judgment customarily exercised by professional firms with respect to services of a similar nature. Replacement or repaired goods and re-performed services shall be warranted for the same length of time as new goods or originally performed services. All warranties shall extend to Buyer, its customers, and to users of the goods or services. This warranty shall survive inspection, acceptance and payment.

10. **DRAWINGS.** Buyer's review and approval of drawings submitted by Seller will be for and will cover only general conformity to specifications. Such approval will not constitute approval of any dimensions, quantities or details of the material shown by such drawings, and shall not relieve the Seller of its responsibilities for meeting all specifications of this purchase order. Buyer retains rights of final approval for all finished products pursuant to Article 11 hereof.

11. **REJECTIONS.** If any of the goods are found by Buyer within a reasonable time (as appropriate for the goods at issue and not less than one (1) year from receipt of the goods by Buyer) to be defective in material or workmanship, or otherwise not in conformity with the requirements of this purchase order, the warranties, or the specifications, Buyer, at its option and in addition to any other rights which it may have under warranty or otherwise, shall have the right to: (i) retain such goods at a mutually agreed adjusted price, or (ii) reject and return such goods at Seller's expense, for a refund or credit within five (5) business days' of such return, or receive replacement goods, which goods shall not be replaced by Seller without written authorization from an authorized agent of Buyer. Seller shall pay all expenses, including demurrage, handling and storage charges, and freight both ways on rejected goods. This does not limit any other legal remedies available to Buyer. Buyer shall only accept and thereby remit payment for goods in conformity with the requirements of the purchase order and specifications. Unsatisfactory or non-conforming services may be re-performed, refunded, or credited at Buyer's option.

12. **CHANGE CONTROL; QUALITY OBLIGATIONS.** A) *Change Control.* Seller agrees not to make any such modification to the goods, including changes in the goods' components, specifications, manufacturing methods, materials, manufacturing sites, equipment, testing protocols, control systems, and any other aspect of the goods' configuration or performance that affect its form, fit or function, nor discontinue the goods, without Buyer's prior written consent. Seller will apply all reasonable efforts to provide Buyer with as much advance notice as possible and, whenever possible, provide at least twelve (12) months' notice; b) *Access to Facility; Audit.* Upon five (5) days written notice, Seller will allow Buyer to visit its manufacturing facility during normal business hours, for the purpose of conducting audits required by Buyer's Quality Management System; c) *Corrective Actions.* Buyer will notify Seller's promptly of any nonconformity of the goods to their specifications, customer complaints or failures that may relate to the goods. Seller shall generate a failure mode analysis and subsequent report of the causes for the failure or errors to Buyer within thirty (30) days and, if necessary, create and implement a corrective action on a timely manner; d) *Record Retention.* Seller shall maintain records, to the extent it deems necessary, relating to the manufacture of goods purchased by Buyer for a period of no less than eleven (11) years from the good's date of manufacture. Such records must be made available to Buyer in a promptly manner in order to resolve any issue that requires the gathering of historical information.

13. **COMPLIANCE WITH LAWS.** Seller warrants that goods manufactured or services performed pursuant to this purchase order are manufactured or performed in compliance with all applicable federal, state and local laws, rules and regulations, including but not limited to the Toxic Substances Control Act, the Occupational Safety and Health Act, the Clean Air Act, the Federal Water Pollution Control Act, the Solid Waste Disposal Act, the Resource Conservation and Recovery Act, and the Hazardous Materials Transportation Act.

14. **WORK ON BUYER'S OR ITS AFFILIATE'S OR CUSTOMER'S PREMISES.** If Seller's performance under this purchase order involves operations by Seller on the premises of Buyer or one of its affiliates or customers, Seller shall comply with applicable provisions of federal, state and local laws and regulations, in addition to all Buyer's written policies, and shall take all necessary precautions to prevent the occurrence of any injury to persons or property during the progress of such performance. Except to the extent that any such injury is due solely and directly to Buyer's or the negligence of one or more of Buyer's affiliates or customers, as the case may be, Seller shall indemnify Buyer, its affiliate or its customer whose premises the work is performed on against all loss which may result from any act or omission of Seller, its agents, employees, or sub-contractors. Seller shall maintain such Public Liability, Property Damage, Personal Injury and Employee's Liability and Compensation insurance in an amount not less than \$1,000,000.

15. **BUYER'S PROPERTY.** Unless otherwise agreed in writing, all tools, equipment or material of every description furnished to Seller by Buyer or specifically paid for by Buyer, and any replacement thereof, or any materials affixed or attached thereto, shall be and remain the sole property of Buyer. Such property (a) shall be clearly marked "Property of Buyer" (b) shall not be used except in filling Buyer's orders; (c) shall be held at Seller's risk; and (d) shall be delivered without cost to Buyer promptly at its written request. Seller shall supply Buyer with an inventory of such property quarterly. Any specifications, drawings, sketches, models, samples, tools, technical information or data, written, oral or graphic or other tangible form shall be immediately returned to Buyer without cost upon its request. The information shall be kept confidential by Seller, shall be used only in the filling of Buyer orders, or in performing hereunder, and may be disclosed or used for other purposes only upon such time as may be agreed between Buyer and Seller in writing. No information furnished by Seller to Buyer or in contemplation hereof shall be considered by Seller to be confidential or proprietary except as specifically agreed to in writing by an authorized agent for Buyer.

16. **INSIGNIA.** Material rejected or not purchased by Buyer which utilizes or carries any Buyer or its affiliates' name, trade names, trademarks, insignia, symbols, decorative designs or evidences of Buyer's or its affiliates' inspection (all hereinafter designated "insignia") shall have all such insignia removed by Seller prior to any further sale, use or disposition thereof. Seller agrees to indemnify and hold Buyer harmless from any claim, loss or damage arising out of Seller's failure to do so. This clause shall in no way modify provisions hereof relating to the use of information.

## TERMS AND CONDITIONS OF PURCHASE FOR MILLIPORESIGMA ENTITIES

17. **INDEMNIFICATION.** Seller shall indemnify, defend, and hold harmless each of Buyer, its affiliates, subsidiaries, divisions, distributors, employees, agents, representatives and customers, and its or their respective successors and assigns (each an "Indemnified Party") from and against, and in respect of, any and all actions, claims, suits, judgments, damages, liabilities, losses, costs, and expenses (including, without limitation, attorneys' fees) of every kind whatsoever (collectively, "Damages") arising in any manner out of or from, or in connection with any actual or alleged (i) patent, copyright or trademark infringement, or violation of any other proprietary right, arising out of the purchase, sale, distribution or use of any goods, (ii) breach by Seller of any term or condition of this agreement, (iii) personal injury, wrongful death or property damage arising out of or relating to any goods or services, (iv) any violation on the part of the Seller of any and all federal, state, county, or municipal laws, ordinances, regulations and orders in respect to any goods or services, or its performance in furtherance thereof, including, without limitation, United States import or export control law, regulation, treaty or other international agreement to which the United States adheres or complies, or any applicable export, import or other laws of any other jurisdiction; and (v) wrongful or negligent act or omission by Seller or its officers, directors, shareholders, employees, agents, representatives or sub-contractors.

18. **INFRINGEMENT.** The following terms apply to any infringement, or claim of infringement, of any patent, trademark or copyright based on the manufacture, normal use or sale of any goods, material or equipment furnished to Buyer hereunder or in contemplation hereof. Seller shall indemnify Buyer, its affiliates, and its customers for any loss, damage, expense or liability that may result by reason of any such infringement or claim (including without limitation attorney's fees and expenses), and shall defend or settle, at its own expense, any action or suit for which it is responsible hereunder. Buyer shall notify Seller of any claim of infringement of which Buyer becomes aware and, where commercially feasible, shall cooperate with Seller to facilitate Seller's defense of any such claims.

19. **LIMITATION OF LIABILITY.** IN NO EVENT WILL BUYER BE LIABLE TO SELLER FOR INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION, LOSS OF PROFITS, LOSS OF BUSINESS, LOSS OF USE, OR OTHER ECONOMIC LOSS EVEN IF BUYER IS INFORMED OF THE POSSIBILITY. BUYER'S MAXIMUM DAMAGES UNDER THIS PURCHASE ORDER SHALL BE LIMITED TO THE TOTAL PRICE OF THE GOODS OR SERVICES CONTRACTED HEREUNDER.

20. **CONFIDENTIALITY.** Seller shall keep confidential and secret any and all Confidential Information of Buyer or its affiliates that may be disclosed by or on behalf of Buyer. "Confidential Information" shall consist of trade secrets, know-how, proprietary information, formula, processes, records, techniques, specifications, information relating to the Buyer's or its affiliates' past, present and future marketing and research and development activities, and any other information that should reasonably be understood to be confidential that are disclosed to Seller by Buyer or its affiliates, whether disclosed in writing, verbally or by any other means.

21. **TERMINATION.** If Seller ceases to conduct its operations in the normal course of business (including inability to meet its obligations as they mature), or if any proceeding under bankruptcy or insolvency laws is brought by or against Seller, or a receiver for Seller is appointed or applied for, or an assignment for the benefit of creditors is made by Seller, then in any such event Buyer may terminate this purchase order and all outstanding purchase orders without liability except for conforming deliveries previously made or for conforming goods covered by this purchase order then completed and subsequently delivered promptly in accordance with the terms of this purchase order. In addition, Buyer shall have the right to terminate this purchase order and its related agreement(s) immediately upon written notice in the event that Seller is in breach of Article 34 hereof.

22. **CANCELLATION.** Buyer may modify or cancel this purchase order prior to shipment (if goods) or start of performance (if services) without penalty or liability at any time upon written notice.

23. **NON-ASSIGNMENT.** Assignment of this purchase order or any interest herein or any payment due or to become due hereunder, without the written consent of an authorized agent of Buyer, shall be void and of no effect and may, at the option of Buyer, render this purchase order invalid.

24. **SUB-CONTRACTING.** The Seller shall not sub-contract or delegate performance of all or any part of the work called for under this purchase order without the prior written consent of an authorized agent of Buyer. Buyer shall have the right to return any goods to Seller that were manufactured in violation in this Article 24, and shall have the further right to a full refund of the purchase price from Seller for such goods.

25. **NON-WAIVER.** The failure by Buyer to enforce at any time or for any period of time any of the provisions hereof shall not be a waiver of such provisions nor of the right of Buyer thereafter to enforce each and every such provision.

26. **GOVERNING LAW.** The contract resulting from acceptance of this purchase order by Seller shall be governed and construed by the laws of the Commonwealth of Massachusetts.

27. **FORCE MAJEURE.** Neither party shall be liable for any delay or failure of performance due to causes beyond its reasonable control provided it shall have given notice of any such cause and shall have used its best efforts to mitigate said delay or failure. The parties shall use due diligence and all commercially reasonable efforts to promptly address, remedy and/or remove any cause of a force majeure event.

28. **PUBLICITY.** Seller shall make no reference, advertisement, or promotion regarding or mentioning Buyer or its affiliates or their respective employees without the prior written consent of Buyer.

29. **INDEPENDENT CONTRACTOR RELATIONSHIP.** Seller will act solely as an independent contractor in relation to performance under this agreement, and nothing herein shall be construed to create the relationship of employer and employee, partnership, or joint venture between Buyer and Seller, or Buyer and Seller's officers, directors, employees or agents.

30. **INSURANCE.** Upon request, Seller agrees to furnish Buyer with a certificate of insurance evidencing general liability including public liability, bodily injury, product liability, contract liability, and property damage; automobile liability; and employer's liability or statutory worker's compensation insurance as is standard in Seller's industry and in accordance with minimum limits required by law.

31. **NON-DISCRIMINATION IN EMPLOYMENT.** The Seller in performing the work required by this purchase order, shall not discriminate against any person in the employment process because of race, creed, color, sex, age, religion, national origin, sexual orientation or identity, and veteran or handicap status. The employment process includes but is not limited to employment advertising, job postings, interviews, testing, recruiting, pay, promotion, transfer, demotion, hiring, educational opportunities, lay-offs and recall.

32. **FAIR LABOR STANDARDS ACT.** In accepting this order, Seller warrants that the goods or services to be furnished hereunder were or will be produced in compliance with the requirements (on the date of shipment or performance) of the Fair Labor Standards Act of 1938 (the "FLSA"), as amended, and unless otherwise agreed in writing, Seller shall insert a certificate on all invoices submitted in connection with this purchase order stating that the goods or services covered by the invoice were produced in compliance with the requirements of the FLSA, including without limitation, Sections 12(a) and 15(a) thereof.

33. **ILLEGAL MINERALS.** Seller shall not provide any tantalum, tin, tungsten or gold (the "minerals") mined from the Democratic Republic of the Congo, Angola, the Republic of the Congo, Uganda, Rwanda, Burundi, Tanzania, Zambia, South Sudan and the Central African Republic (the "covered countries") that contribute to armed conflict or human rights abuses. Upon request, Seller shall provide country of origin information for the minerals.

34. **CORPORATE RESPONSIBILITY OBLIGATIONS.** a) *Compliance Standard.* Each party shall conduct its business in accordance with this agreement, and all applicable international, regional, national, and local laws, directives, regulations, ordinances, competent authorities' decisions, and guidelines ("Applicable Laws") and adhere to the Supplier Code of Conduct available at <https://www.emdgroup.com/en/company/contact-us/SCoC.html>. Each party further represents that it is familiar and warrants to comply with the provisions of the United States Foreign Corrupt Practices Act ("FCPA"), the UK Bribery Act ("UKBA") and other applicable bribery and corruption laws (collectively, including the Supplier Code of Conduct, "Compliance Standards"). Seller shall not take or permit any action that will either constitute a violation under or cause Buyer or its respective affiliates to be in violation of these Compliance Standards ("Improper Conduct"). Seller shall select its sub-contractors with utmost care and use its best efforts to ensure that its sub-contractors also comply with these Compliance Standards. Seller shall comply with all periodic disclosures and certifications set forth in the Supplier Code of Conduct. Buyer may, from time to time, in its sole discretion, require that Seller signs a certification statement providing that, in performing the services and/or delivering the goods under this agreement, Seller has complied with and will continue to comply with these Compliance Standards. b) *Obligation to Notify and Audit Rights.* Seller shall notify Buyer promptly in writing of any Improper Conduct. In addition to any other rights Buyer may have under this agreement, if (i) Seller notifies Buyer of, or (ii) Buyer otherwise has reasonable suspicion of the occurrence of Improper Conduct, or (iii) Buyer may, at its sole discretion, conduct audits to confirm Seller's compliance, then Buyer may, in not less than ten (10) business days, upon a written notice, review or have reviewed by an independent auditor the premises, books, and records of Seller relevant for the audit for the purpose of verifying and identifying the Improper Conduct and assessing its impact on Buyer's business relationship with the Seller. At the sole discretion of Buyer, Seller shall bear or reimburse any quantifiable damages/losses in relation to the Improper Conduct and all reasonable costs and expenses incurred in connection with an audit or review that identifies Improper Conduct. Seller shall also cooperate in good faith if Buyer requires Seller's support for Buyer's internal investigations. c) *Remedial Actions.* If Seller notifies Buyer or Buyer, through the audit or otherwise, obtains sufficient evidence about Improper Conduct of Seller or its sub-contractors, Buyer may request from Seller in writing to prepare and submit to Buyer a draft of the Corrective and Preventive Action Plan ("CAPA") in order to address the detected Improper Conduct. Seller shall submit an initial draft of CAPA within fifteen (15) business days after receipt of Buyer's request. Buyer shall review and amend the submitted draft CAPA where needed. The approved CAPA shall be implemented by Seller within a reasonable grace period, it being understood that the timelines provided in the CAPA shall be deemed to be a reasonable grace period for the purposes of this Section. Buyer reserves the right to suspend certain or all activities under this agreement upon its request for implementing the CAPA until Seller can demonstrate that the CAPA has been successfully implemented. d) *Termination Right.* Without prejudice to any other termination rights in this agreement and without prejudice to Buyer's right to claim damages and indemnification, Buyer may terminate this agreement and cancel all outstanding purchase orders at no cost by serving a written notice to Seller with immediate effect, if (i) Seller fails to comply with its obligations under this agreement and Seller fails to fix this non-compliance, or if (ii) Seller fails to implement the CAPA within the grace period, or if (iii) Buyer, taking into account all circumstances of the specific case and weighing the interest of both parties, cannot reasonably be expected to continue the contractual relationship with Seller, or (iv) considering the severity of the Improper Conduct, Buyer may terminate this agreement and all outstanding purchase orders without requesting a CAPA from Seller.